

Ballina Adventure Park — Paintball

Risk Warning, Waiver, Release & Indemnity (NSW) — under the Paintball Act 2018 (NSW), Paintball Regulation 2019 (NSW), Civil Liability Act 2002 (NSW) and the Australian Consumer Law.

ABN 91 879 831 927

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1. PARTICIPANT DETAILS

Full name: _____

Date of birth: _____

Mobile: _____

Email: _____

Emergency contact (name): _____ Phone: _____

2. RISK WARNING & ACKNOWLEDGMENT OF RISK (CIVIL LIABILITY ACT 2002 (NSW), SS 5F–5M)

WARNING — PAINTBALL IS A DANGEROUS RECREATIONAL ACTIVITY THAT INVOLVES A SIGNIFICANT RISK OF PHYSICAL HARM. Our course is set in natural Australian bushland and by taking part you may be exposed to risks including, but not limited to: being struck by paintballs fired at high speed (causing bruising, welts, eye, ear or dental injury); the **NATURAL BUSH ENVIRONMENT AND UNEVEN TERRAIN** — sloping and uneven ground, holes, rocks, tree roots, fallen timber, stumps, branches, scrub and undergrowth, which can cause trips, falls, cuts, abrasions and eye injury; contact with **NATIVE WILDLIFE** such as snakes, spiders, ticks, ants and other insects; collisions with other people, structures or equipment; equipment failure or malfunction; over-exertion, heat, cold and weather; and the careless or deliberate conduct of other participants. These activities carry a risk of serious permanent injury, disability or death.

I confirm that I:

- am at least **12 years old** (the minimum age under NSW law), and if under 18 my parent or guardian has signed Section 5;
- am medically and physically fit to take part, am not affected by alcohol or drugs, and have disclosed any condition that may affect my safety;
- will watch and follow the video safety induction before playing (covering **mandatory mask/eye-protection wearing** and the safety briefing), will keep my mask on at all times in the playing area, and will obey all safety rules, signage and staff instructions;
- understand and voluntarily accept all of the above risks, including risks that may arise from the negligence of the Releasees, and that failure to follow the rules may result in injury or removal without refund.

Medical: Do you have any injury, illness, allergy or medical condition we should know about (e.g. heart condition, asthma, bleeding disorder, eye condition, pregnancy)? No ☐ Yes ☐ — if Yes, please tell staff before playing: _____

3. RELEASE, EXCLUSION OF LIABILITY & INDEMNITY (CIVIL LIABILITY ACT 2002 (NSW), SS 5L, 5N; AUSTRALIAN CONSUMER LAW)

WARNING UNDER THE AUSTRALIAN CONSUMER LAW: Under the Australian Consumer Law, several statutory guarantees apply to the supply of these recreational services and cannot normally be excluded. However, the law permits a supplier of recreational services to ask you to agree that those guarantees, and any liability for failing to comply with them, are **EXCLUDED, RESTRICTED OR MODIFIED**. By signing, you agree that your rights to sue Ballina Adventure Park if you are killed or injured because the services were not rendered with due care and skill, or were not reasonably fit for their purpose, are excluded, restricted or modified as set out below. **THIS AGREEMENT DOES NOT APPLY TO SIGNIFICANT PERSONAL INJURY OR DEATH CAUSED BY THE RECKLESS CONDUCT OF THE SUPPLIER.**

In consideration of being permitted to take part, I (and, if I am under 18, my parent/guardian on my behalf and personally) agree that, to the maximum extent permitted by law:

- **Exclusion of consumer guarantees:** the consumer guarantees in the Australian Consumer Law that the services will be rendered with due care and skill, and any liability of Ballina Adventure Park for failure to comply, are excluded — except liability for death or significant personal injury caused by the reckless conduct of the supplier, which is not excluded.
- **Waiver of duty of care (s 5N):** any liability arising from breach of an express or implied warranty that the services would be supplied with reasonable care and skill is excluded.
- **Release:** I release and discharge Ballina Adventure Park and its owners, staff, agents, contractors and affiliates (the “**Releasees**”) from all claims for injury, loss, damage or death arising from my participation, **including claims caused by the negligence of the Releasees**, to the extent the law allows.
- **Indemnity:** I indemnify and hold the Releasees harmless against any claim, cost or liability brought by me or on my behalf arising from my participation, except to the extent it results from the reckless conduct of a Releasee.

Nothing in this form excludes any liability that cannot be excluded by law. If any part is found to be unenforceable, the remaining parts continue to apply.

4. PRIVACY

Ballina Adventure Park collects the personal information (and any health information) on this form to identify participants, assess fitness to play, manage safety and emergencies, meet its insurance and legal obligations, and contact you. It is held securely, is not sold, and is not disclosed except where reasonably necessary for these purposes or as required by law. You may request access to, or correction of, your information by contacting us at ian@paintballskirmishballinabyron.com.au or 0403 548 322. By signing, I consent to Ballina Adventure Park collecting and using this information, including any health information I provide (Privacy Act 1988 (Cth), Australian Privacy Principles).

5. SIGNATURE

I have read and understood this form, including the warnings above, and agree to its terms freely.

Participant signature: _____

Date: _____

Parent / guardian consent — required if the participant is under 18

Must be signed by a parent or legal guardian with parental responsibility for the participant — not another accompanying adult. A parent/guardian who cannot attend may complete and sign this form in advance.

I confirm I am the parent or legal guardian with parental responsibility for the participant. I have read this form, I have explained the risks to the participant, I consent to their participation, and I agree to the risk warning, release, exclusions and indemnity in Sections 2–3 both on the participant's behalf and in my own right.

Name: _____ Phone: _____ Signature: _____ Date: _____